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IN THE SECOND DISTRICT COURT OF APPEAL
CASE NO.:

META PLATFORMS, INC. and
INSTAGRAM, LLC,

Petitioners,

vs.

OFFICE OF THE ATTORNEY GENERAL, STATE OF FLORIDA,
DEPARTMENT OF LEGAL AFFAIRS,

Respondent.

ON CERTIORARI REVIEW FROM THE CIRCUIT COURT
OF THE SIXTH JUDICIAL CIRCUIT IN AND FOR
PASCO COUNTY, FLORIDA
L/T CASE NO.: 2024-CA-3193

PETITION FOR WRIT OF CERTIORARI

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INTRODUCTION

The State of Florida seeks to hold Meta liable for how it publishes third-party content on its social media services. A federal statute and the constitutions of the United States and Florida prevent exactly that outcome. Nevertheless, the Circuit Court permitted the State's suit to proceed in a four-sentence, unreasoned order. This Court should grant immediate certiorari review under Florida Rule of Appellate Procedure 9.100(c)(1) and quash the Circuit Court's decision, which departs from the essential requirements of law and inflicts material and irreparable harm on Meta.

The decision below deprives Meta of its statutory and constitutional rights—rights that preclude this litigation in the first place. As Florida courts have already determined, Section 230 of the federal Communications Decency Act, 47 U.S.C. § 230, provides an immunity from suit that prevents interactive computer service providers such as Meta from facing liability based on their role as publishers of third-party content. *See Doe v. Am. Online, Inc.*, 783 So. 2d 1010, 1014–15 (Fla. 2001). Separately, rights to freedom of expression in the United States and Florida constitutions protect the editorial decisions Meta makes when publishing that content, as well

as other forms of expressive activity.[1] These rights preclude this litigation in full. Accordingly, every day Meta is forced to litigate this suit, it suffers irreparable injury.

The Circuit Court also departed from the essential requirements of law. The State's claims challenging certain publication features on Meta's services necessarily target Meta as a publisher of its users' content and therefore trigger Section 230's statutory immunity. Courts facing similar cases across the country have recognized as much. Most relevantly, a federal court overseeing multidistrict litigation against Meta and other providers held that Section 230 bars challenges to certain "design features" the State challenges here: notifications, ephemeral content, "Infinite Scroll," and Autoplay. *See In re Soc. Media Adolescent Addiction/Pers. Inj. Prods. Liab. Litig.*, 753 F. Supp. 3d 849, 880–83 (N.D. Cal. 2024), *appeal docketed* (9th Cir., No. 24-7312).

Meanwhile, the Circuit Court's First Amendment ruling

[1] Protections afforded to "freedom of expression" under the Florida Constitution are "the same" as under the First Amendment to the U.S. Constitution. *Dep't of Educ. v. Lewis*, 416 So. 2d 455, 461 (Fla. 1982). This brief uses the term "First Amendment" to refer to both provisions collectively.

conflicts with the U.S. Supreme Court's recent decision in *Moody v. NetChoice, LLC*, 603 U.S. 707 (2024), which concluded that social media services, including Meta's, engage in First Amendment-protected expression when they "make choices about what third-party speech to display and how to display it"—including when they "include and exclude, organize and prioritize" user-generated content to present a "curated" content feed, *id.* at 716. The First Amendment also protects Meta's statements of opinion and its attempts to petition Congress, and therefore bars the State's claims based on such statements.

This Court should grant Meta's petition for certiorari and quash the order of the Circuit Court.

JURISDICTION

This Court has jurisdiction to grant this petition under Florida Rule of Appellate Procedure 9.030(b)(2)(A) and Article V, section 4(b)(3) of the Florida Constitution because, as detailed herein, the decision below departs from the essential requirements of law and causes irreparable harm that cannot be corrected on an appeal from a final judgment.

FACTUAL AND PROCEDURAL BACKGROUND

Meta operates Facebook and Instagram, which billions of people—including teenagers—use to connect and communicate with others online. App. A10, 13. The Office of Attorney General, State of Florida, Department of Legal Affairs ("State") sued Meta in the Circuit Court of the Sixth Judicial District in and for Pasco County asserting a single cause of action under the Florida Deceptive and Unfair Trade Practices Act ("FDUTPA"), Fla. Stat. Ann. Section 501.204(1), Florida Statutes. App. A3.

The State broadly alleges that Meta engaged in unfair and deceptive trade practices by "designing" its social media services to be "addictive" to young users. App. A30. In particular, the State alleges that certain so-called "design features" of Facebook and Instagram are unfair under FDUTPA. *Id.* Such "features" pertain to how Meta organizes, displays, and disseminates third-party content on Facebook and Instagram. They include "appearance-altering filters," App. A24–25; "Likes," App. A25–26; "Infinite Scroll," "Autoplay," and "Reels," App. A26–27; "ephemeral or time-sensitive content," App. A27–28; "Multiple Accounts," App. A28–29; "Notifications," App. A29–30; and "time management tools,"

App. A30–31. The State further alleges that Meta knew that these "features" lead "to addictive and compulsive use by [y]oung [u]sers" and that it misrepresented that its services were safe. App. A35.

Meta moved to dismiss the State's Complaint, arguing, as relevant to this petition, that Section 230 of the Communications Decency Act, 47 U.S.C. § 230, as well as the First Amendment to the U.S. Constitution and its Florida Constitution counterpart, bar the State's FDUTPA claim. App. A59–101. The Circuit Court denied Meta's motion to dismiss in a one-paragraph order ("Order") on October 27, 2025. App. A189. The Circuit Court provided no reasoning for rejecting Meta's arguments based on affirmative defenses that appeared from the face of the Complaint, stating only that "the Complaint sufficiently pleads the claims and withstands a motion to dismiss." *Id.*

NATURE OF RELIEF SOUGHT

This Court should quash the Order because it departs from the essential requirements of law and irreparably harms Meta by depriving it of statutory and constitutional protections to free expression that bar this suit.

STANDARD OF REVIEW

This Court will grant certiorari relief where there is "(1) a departure from the essential requirements of the law, (2) resulting in material injury for the remainder of the case (3) that cannot be corrected on postjudgment appeal." *Williams v. Oken*, 62 So. 3d 1129, 1132 (Fla. 2011) (quoting *Reeves v. Fleetwood Homes of Fla., Inc.*, 889 So.2d 812, 822 (Fla. 2004)). "The last two elements are jurisdictional and must be analyzed before the court may even consider the first element." *Id.*

ARGUMENT

The Order inflicts material and irreparable harm on Meta. The State's suit targets Meta in its capacity as a publisher of third-party content and therefore triggers the immunity from suit granted by Section 230. In addition, Meta's First Amendment right—recently reaffirmed by the U.S. Supreme Court—to exercise editorial discretion over third-party content disseminated on its services blocks this suit in its entirety. In other words, Section 230 and the First Amendment protect Meta from suits like the State's. And the Order runs roughshod over both protections. By allowing this case to proceed to final judgment, the Order deprives Meta of its rights to

be free from litigating this dispute under Section 230 and the First Amendment.

In failing to give effect to these rights, the Order departed from the essential requirements of the law. As courts across the country have concluded, Section 230 immunity extends both to the publication of third-party content and to the ways in which a social media service organizes and disseminates that content to its users through so-called "design features." And the First Amendment prohibits any attempt to hold Meta liable for editorial decisions in publishing third-party content, as well as for its statements of opinion and petitioning activity.

I. The Court Should Grant Certiorari Relief Because Meta's Statutory and Constitutional Rights Bar This Litigation and Cannot Be Vindicated on Appeal.

The Court regularly grants certiorari to correct the types of harms presented by this petition: a denial of immunity from suit, and the ongoing deprivation of a constitutional right. The Circuit Court's Section 230 and First Amendment rulings wrongfully deprive Meta of protections for expressive activity, and neither right can be vindicated on appeal after being forced to litigate this case to final judgment.

A. The Order Denies Meta an Immunity from Suit Under Section 230.

Florida courts routinely issue writs of certiorari to quash denials of immunity from suit, recognizing that such decisions pose material and irreparable injury to defendants. *Citizens Prop. Ins. Corp. v. San Perdido Ass'n*, 104 So. 3d 344, 353 n.6 (Fla. 2012). An immunity from suit protects a defendant from being haled into court; therefore "being forced to defend the suit is itself a material injury," *Mills v. Kinnan*, 411 So. 3d 501, 507 (Fla. 2d DCA 2025), and "an appeal after final judgment would not be an adequate remedy," *Stephens v. Geoghegan*, 702 So. 2d 517, 521 (Fla. 2d DCA 1997).

The plain text of Section 230 makes clear that it confers an immunity from suit. Section 230(c)(1) states that "[n]o provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider." 47 U.S.C. § 230(c)(1). A companion provision, Section 230(c)(2), "shields [websites] from liability for good-faith efforts to restrict access to" objectionable material. *In re Facebook, Inc.*, 625 S.W.3d 80, 89 (Tex. 2021) (citation modified). These "dual protections are commonly understood to operate in

tandem, ensuring that a website is not discouraged by tort law from policing its users' posts, while at the same time protecting it from liability if it does not." *Id.* at 89.

A third provision—subsection (e)(3)—expressly clarifies that the immunity provided by subsection (c) is an immunity both from suit and liability. 47 U.S.C. § 230(e)(3). Subsection (e)(3) states: "No cause of action may be brought and no liability may be imposed under any State or local law that is inconsistent with this section." *Id.* The phrase "[n]o cause of action may be brought" necessarily confers immunity from suit. If a "cause of action" cannot be brought, a suit cannot be maintained. Moreover, interpreting the earlier phrase—"[n]o cause of action may be brought"—to provide only immunity from liability would render surplus the latter phrase—"and no liability may be imposed." *Contra Hechtman v. Nations Title Ins. of N.Y.*, 840 So. 2d 993, 996 (Fla. 2003) ("[W]ords in a statute should not be construed as mere surplusage.").

This immunity is no accident, but rather a product of congressional intent. In enacting Section 230, Congress included findings that the provision was intended to "promote the continued development of the Internet," and to "preserve the vibrant and

competitive free market that presently exists for the Internet and other interactive computer services, unfettered by Federal or State regulation." 47 U.S.C. §§ 230(b)(1) & (2). To achieve these objectives, "[f]ederal and state courts" "have uniformly held that section 230 'should be construed broadly in favor of immunity.'" *In re Facebook*, 625 S.W.3d at 90 (quoting *Force v. Facebook, Inc.*, 934 F.3d 53, 64 (2d Cir. 2019)).

Florida courts similarly recognize that Section 230 confers an immunity from suit—not just immunity from liability—because the statute "expressly bars 'any actions.'" *Am. Online*, 783 So. 2d at 1018. The Florida Supreme Court adopted this interpretation of Section 230 more than two decades ago. *See id.* at 1014–18. Since then, District Courts of Appeal have consistently reaffirmed the breadth of Section 230 immunity. *See, e.g.*, *Giordano v. Romeo*, 76 So. 3d 1100, 1102 (Fla. 3d DCA 2011) (holding Section 230 provides website operator with "complete immunity from any action brought against it as a result of postings of third party users of its website"); *Medytox Sols., Inc. v. Investorshub.com, Inc.*, 152 So. 3d 727, 731 (Fla. 4th DCA 2014) ("The statute precludes not only 'liability,' but also causes of action for other forms of relief based upon any State or local

law inconsistent with section 230."); *White v. Discovery Commc'ns, LLC*, 365 So. 3d 379, 387 (Fla. 1st DCA 2023) ("Section 230 clearly preempts Florida law.").

Section 230's grant of immunity from suit for entities such as Meta justifies immediate intervention by this Court. Section 230 immunity "is generally accorded effect at the first logical point in the litigation process" because it "is effectively lost if a case is erroneously permitted to go to trial." *Nemet Chevrolet, Ltd. v. Consumeraffairs.com, Inc.*, 591 F.3d 250, 254 (4th Cir. 2009) (citation modified). Indeed, because "immunity protects a party from having to defend a lawsuit at all,… waiting until final appeal to review an order denying dismissal on immunity grounds renders such immunity meaningless if the lower court denied dismissal in error." *Fla. State Univ. Bd. of Trs. v. Monk*, 68 So. 3d 316, 318 (Fla. 1st DCA 2011).

B. The Order Deprives Meta of Its First Amendment Rights and Subjects Meta to Speech-Chilling Litigation.

The decision below also materially injures Meta's rights to expressive activity under the First Amendment, which provides an additional basis for certiorari.

The Florida Supreme Court has recognized that parties are materially injured when their fundamental rights are deprived or delayed during the pendency of a proceeding. *See, e.g.*, *Belair v. Drew*, 770 So. 2d 1164, 1167 (Fla. 2000) (certiorari appropriate where trial court's order "directly contravene[d] the petitioner's right to privacy"). Relevant here, "[t]he loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury." *Elrod v. Burns*, 427 U.S. 347, 373 (1976). The State's suit infringes on Meta's First Amendment right to expressive activity, and the Circuit Court's Order allows that suit to proceed unimpeded. Meta is therefore irreparably harmed each day this unconstitutional litigation continues, and certiorari is justified. *See e.g.*, *Joseph v. State*, 642 So. 2d 613, 613 n.1, 615 (Fla. 4th DCA 1994) (granting certiorari and quashing trial court order, which prohibited petitioner from wearing religious clothing at trial, because petitioner had a "first amendment right to express [his religious beliefs] in his courtroom attire" and "[i]f wrongfully deprived of the right…, petitioner would suffer a harm which could not be remedied on appeal").

In addition, Florida courts have routinely granted certiorari

review to prevent a petitioner's rights from being "chilled." *See, e.g.*, *Matthews v. City of Maitland*, 923 So. 2d 591, 595 (Fla. 5th DCA 2006) (issuing writ because compelled disclosure "would create a chilling effect on [petitioners'] rights to organize and associate"); *Est. of McPherson ex rel. Liebreich v. Church of Scientology Flag Serv. Org., Inc.*, 815 So. 2d 678, 679 (Fla. 2d DCA 2002) (review granted where challenged discovery order "create[d] a chilling effect on receiving future funding"). The State's suit—which seeks to penalize Meta for its expressive activity as publisher and petitioner—threatens to do just that. And because the "mere *threat* of litigation" can chill speech, it is well-settled that "the First Amendment's protections extend … to unnecessary *litigation* that chills speech." *Green v. Miss U.S. of Am., LLC*, 52 F.4th 773, 800 (9th Cir. 2022) (emphases in original). Moreover, "courts have emphasized the importance of resolving First Amendment cases at the earliest possible junction," rather than waiting for an appeal from final judgment. *Id.* That is because once a party is denied the right to free expression, it is "lost forever." *Joseph*, 642 So. 2d at 613 n.1. Certiorari relief is needed to prevent that deprivation here.

To the extent the State's claim rests on alleged misrepresentations made to Congress, the Order also denies Meta its "immunity under the First Amendment to those petitioning government." *Sewell v. Racetrac Petroleum, Inc.*, 245 So. 3d. 822, 827 (Fla. 3d DCA 2017). Indeed, it is well established that the First Amendment protects Meta's responses to questions from Congress "to avoid chilling the exercise of the First Amendment right to petition the government." *Octane Fitness, LLC v. ICON Health & Fitness, Inc.*, 572 U.S. 545, 556 (2014).

II. The Court Should Grant Certiorari Because the Order Departs from the Essential Requirements of Law.

The Circuit Court departed from the essential requirements of law when it failed to hold that Section 230 and the First Amendment bar the State's claim. These legal protections shield Meta and other publishers from suits that penalize protected expressive activity. *See Allstate Ins. Co. v. Kaklamanos*, 843 So. 2d 885, 890 (Fla. 2003) (explaining that "an [erroneous] interpretation or application of a statute, a procedural rule, or a constitutional provision may be the basis for granting certiorari review").

The State's FDUTPA claim contains three theories of liability. The State's "unfairness" theory unlawfully challenges Facebook's and Instagram's "design features." The State's "omissions" theories would wrongfully impose liability on Meta for failing to warn users about the publishing decisions it makes and the allegedly harmful third-party content on its services. And the State's "misrepresentation" theories would hold Meta liable for its content-moderation decisions. Section 230 and the First Amendment bar all three.

A. Section 230 Bars the State's Claim.

The Order contravenes the plain text of Section 230, the congressional intent underpinning the statute, and the prevailing case law interpreting both.

Section 230 immunity applies where, as here, (1) the defendant is a "provider … of an interactive computer service"; and (2) the claim seeks to hold the defendant liable as a "publisher or speaker" of (3) content provided by someone else. 47 U.S.C. § 230(c)(1); *see also Barnes v. Yahoo!, Inc.*, 570 F.3d 1096, 1100 (9th Cir. 2009), *as amended* (Sep. 28, 2009). Here, the first element is undisputed. Courts have consistently held that Meta provides interactive

computer services, *see e.g.*, *In re Soc. Media Adolescent Addiction/Pers. Inj. Prods. Liab. Litig.* ("*In re Soc. Media*"), 702 F. Supp. 3d 809, 825 (N.D. Cal. 2024); *Force*, 934 F.3d at 64, and the State has not argued otherwise. Section 230's third element is also easily satisfied. The Complaint itself makes clear that the allegedly harmful content is posted by third-party users, not Meta. *See*, *e.g.*, App. A10 ("Instagram … enables users to share content"); App. A28–29 (alleging users have "personalized feeds" of third-party content). There is no allegation that Meta is responsible for that content's "creation or development." 47 U.S.C. § 230(f)(3).

Section 230's second element—that the claim targets Meta in its role as a publisher—is also met as to each of the State's theories of liability. Consistent with Section 230's text, courts have adopted "a capacious conception of what it means to treat a website operator as [a] publisher." *See, e.g.*, *Force*, 934 F.3d at 65 (citing dictionary definitions). "[A] publisher's traditional editorial functions" include "deciding whether to publish, withdraw, postpone or alter content," *Jones v. Dirty World Ent. Recordings LLC*, 755 F.3d 398, 407 (6th Cir. 2014) (citation modified), as well as "editorial decisions and functions ancillary to the decision to make content available," *In re Soc. Media.*,

702 F. Supp. 3d at 827. For that reason, Section 230 immunity extends to a website's "features and functions" including "algorithms," "recommendations," and "notifications," because they are "tools meant to facilitate the communication and content of others." *Dyroff v. Ultimate Software Grp., Inc.*, 934 F.3d 1093, 1098 (9th Cir. 2019).

In applying Section 230, "what matters is not the name of the cause of action," but "whether the cause of action inherently requires the court to treat the defendant as the 'publisher or speaker' of content provided by another." *Barnes*, 570 F.3d at 1101–02. "In making this determination," courts "conduct a case-specific approach, examining what a plaintiff in a particular case must prove." *M.P. by & through Pinckney v. Meta Platforms Inc.*, 127 F.4th 516, 524–25 (4th Cir. 2025), *cert. denied*, No. 24-1133, 2025 WL 2824590 (U.S. Oct. 6, 2025). Section 230 bars all the State's "theor[ies] of liability" because they all "would treat [Meta] as a publisher or speaker of third-party content." *Doe v. Grindr Inc.*, 128 F.4th 1148, 1151 (9th Cir. 2025) (citation modified).

1. Section 230 Bars the State's Unfairness Theory.

The State alleges that Meta engaged in unfair practices by

"knowingly designing [Facebook and Instagram]" to addict users. App. A54. The State identifies seven so-called "design features" that allegedly contribute to Meta's unfair design. App. A25–31. But these features reflect Meta's editorial choices as to whether, when, and how to publish user-generated content. Accordingly, the State's claims necessarily challenge Meta's publication of that third-party content.

Section 230 has been interpreted to bar claims that would impose liability on an entity for performing a publisher's "traditional editorial functions." *Medytox Sols.*, 152 So. 3d at 730. And when Meta curates, organizes, and disseminates third-party content on a user's Facebook or Instagram Feeds—i.e., when Meta engages in precisely the activities the State challenges here—it is performing the same publishing activities as "[t]raditional publishers and editors" have long performed. *Moody*, 603 U.S. at 717. Courts interpreting Section 230 have rightly recognized that "arranging and distributing third-party information," which "inherently forms 'connections' and 'matches' among speakers, content, and viewers of content," is "an essential result of publishing." *Force*, 934 F.3d at 66; *see also M.P.*, 127 F.4th at 525 (dismissing under Section 230 plaintiff's state claims challenging Facebook's "own design" because they were

"inextricably intertwined with Facebook's role as a publisher of third-party content").

Because the State challenges the "features" that Meta uses collectively to perform traditional publishing functions, Section 230 bars the State's claim. The "design features" challenged here generally "mak[e] information more available" to users, which is "an essential part of traditional publishing." *Force*, 934 F.3d at 70; *see also White*, 365 So. 3d at 387 (Section 230 protects "presenting Internet search results to users in a relevant manner"). Imposing liability on Meta for these "features" would therefore "necessarily require [Meta] to publish less third-party content" and "inherently limit" what Meta publishes, all in violation of Section 230. *In re Soc. Media*, 702 F. Supp. 3d at 831; *see also Fields v. Twitter, Inc.*, 217 F. Supp. 3d 1116, 1124 (N.D. Cal. 2016) (Section 230 immunizes the "structure and operation of a website," including "what content can appear on the website"), *aff'd on other grounds*, 881 F.3d 739 (9th Cir. 2018).

Even when analyzed individually, each of the challenged "design features" receives protection under Section 230.

Likes. Meta's services permit users to "like" other users' photos or videos. App. A24. The State alleges that "Likes" incentivize users to create additional content to "get … more likes," thereby maximizing user engagement. App. A49–50; *see also* App. A54–55. But by their very nature, "Likes" are messages among users, which make them the prototypical user-provided content to which Section 230 applies. *See Kimzey v. Yelp! Inc.*, 836 F.3d 1263, 1266 (9th Cir. 2016) (citing *FTC v. Accusearch Inc.*, 570 F.3d 1187, 1195 (10th Cir. 2009)). The State's allegations recognize as much—the State contends "Likes" are harmful because they communicate "social comparison" "tallies" between users. App. A25–26. Section 230 prevents Meta from being held liable for such communications, which are created by Meta users and merely published by Meta. *See Kimzey*, 836 F.3d at 1270 (Section 230 bars liability for "reduc[ing]" certain "inputs from third parties … into a single, aggregate metric"); *Dyroff*, 934 F.3d at 1098; *see also In re Soc. Media*, 702 F. Supp. 3d at 833 (Section 230 bars challenges to notifications of "Likes" and "comments").

Notifications & Alerts. Section 230 also bars the State's challenge to Meta's display of notifications that alert users to new third-party content. App. A30. Notifications facilitate the

dissemination of third-party content, just as a newspaper's sidebar or table of contents highlights selected stories in other sections that a reader must turn to. As courts have repeatedly recognized, when Meta sends "alerts or notifications" related to third-party content, it is "acting as a publisher of others' content" because its notifications "facilitate the communication and content of others." *See, e.g.*, *Dyroff*, 934 F.3d at 1098; *In re Soc. Media*, 702 F. Supp. 3d at 833 (Section 230 bars allegations related to "notifications … to alert users to third-party content"); *FTC v. Match Grp., Inc.*, No. 3:19-CV-2281-K, 2022 WL 877107, at *7–8 (N.D. Tex. Mar. 24, 2022) (same).

Infinite Scroll, Autoplay, & Reels. Section 230 bars the State's challenge to Meta's content delivery "design features," such as "Infinite Scroll," Autoplay, and Reels. *See* App. A26–27. Infinite Scroll previews content or makes it partially available until a user scrolls, just like a newspaper's decision to place a headline, photograph, or lede above the fold, with additional content below that a reader must open the page to see. Autoplay allows content to "automatically and continuously" play for a user during a session, while Reels similarly "shows short-form videos that play automatically and loop indefinitely," App. A27, just as a radio station

might play a new hit song on repeat. The State contends that such features make it difficult for users to "disengage and close the app," App. A26, because they offer "an endless feed of short-form videos" that reflect "users' interests," App. A27. But this challenge unlawfully attacks Meta's editorial decisions about whether and how to publish third-party content. *See In re Soc. Media*, 702 F. Supp. 3d at 831 (Section 230 bars "[n]ot providing a beginning and end to a user's 'Feed[.]'").

Ephemerality. Section 230 also prohibits the State from requiring Meta to publish certain content for longer. The State claims that so-called "ephemeral" content "train[s] users to regularly check [Facebook and Instagram], resulting in compulsive use." App. A28. But "determining the length of content published and how long to publish [it] are 'traditional editorial functions' immune under Section 230." *In re Soc. Media*, 702 F. Supp. 3d at 832 (quoting *Barnes*, 570 F.3d at 1102); *see also Doe v. Snap, Inc.*, No. H-22-00590, 2022 WL 2528615, at *14 (S.D. Tex. July 7, 2022) (Section 230 bars claims for messages that "automatically delete after a short period of time"), *aff'd sub nom. Doe ex rel. Roe v. Snap, Inc.*, No. 22-20543, 2023 WL 4174061 (5th Cir. June 26, 2023); *L.W. v. Snap Inc.*, 675 F. Supp. 3d

1087, 1097 (S.D. Cal. 2023) (Section 230 bars claims regarding "ephemeral design features"). Just as a live television program may air for only an hour, or a concert promoter may decide to put on a show for one night only, "ephemeral" content on Meta's services reflects an editorial decision about how long to make content available. *In re Soc. Media*, 702 F. Supp. 3d at 832.

Filters. The State's challenge to Meta's "filters," which allow users to "shar[e] … augmented content" with other users, must fail under Section 230. *See* App. A25. According to the State, viewing other users' filtered content causes "significant harm to [Meta's] users." App. A24; *see also* App. A43–44 (alleging that filters "promote[] unhealthy body expectations" because they show "unrealistic body images"). But as the State's allegations reflect, "the harm that is alleged to flow from" the filters "is directly related to the posting of third-party content" made via those filters. *Doe v. Twitter, Inc.*, 555 F. Supp. 3d 889, 929–30 (N.D. Cal. 2021), *aff'd in relevant part*, No. 22-15104, 2023 WL 3220912 (9th Cir. May 3, 2023). Section 230 therefore bars the State's challenge to filters because the alleged harm is "not independent of [Meta's] role as a facilitator and publisher of third-party content." *Doe*, 128 F.4th at 1153.

Multiple Accounts. Section 230 likewise prohibits the State's challenges to Meta's "multiple accounts feature," which allows users to register and access up to five accounts at once. *See* App. A28. The State alleges that this "feature" has a "harmful multiplier effect" by providing users with "access to multiple continuous personalized feeds." *Id.* But Meta's "decision to furnish an account … is itself publishing activity." *Fields*, 217 F. Supp. 3d at 1124; *see also Jane Doe No. 1 v. Backpage.com, LLC*, 817 F.3d 12, 20 (1st Cir. 2016) (Section 230 bars claims "permitt[ing] users to register under multiple screen names"). Indeed, by challenging the "multiple accounts feature," the State seeks to hold Meta liable for activity that is no different from a newspaper permitting a reader to subscribe to multiple editions.

Time Management Tools. The State's allegation that Meta's "time management tools," such as "Daily Limit" and "Take a Break," have been "ineffective in curbing" addiction is barred by Section 230. *See* App. A30–31. According to the Complaint, the "Daily Limit" tool "restrict[s] the amount of time users spend on Instagram," App. A30, while the "Take a Break" tool notifies users when they have "spent more than a certain amount of time using the app," App. A31. The

State's theory would impose liability on Meta for not limiting third-party content on Facebook and Instagram after a set time. This would require Meta to monitor the content being shown to a user and to prevent continuing to show the user additional content after that period, in violation of Section 230. *See, e.g.*, *Fair Hous. Council of San Fernando Valley v. Roommates.Com, LLC*, 521 F.3d 1157, 1170–71 (9th Cir. 2008) (en banc) ("[A]ny activity that can be boiled down to deciding whether to exclude material that third parties … post online is perforce immune under section 230.").

2. Section 230 Bars the State's Omission-Based Theories.

Section 230 likewise prohibits the State's omissions-based deception theories. These theories would impose liability on Meta for failing to warn users about purportedly harmful third-party content and interactions on its services. App. A39–40, 41–42, 56. Section 230 bars these allegations because they seek to hold Meta liable for other users' speech.

Specifically, the State faults Meta for failing to warn about (1) cyberbullying or other harassing content created or shared by other users and (2) harms from "Likes." *E.g.*, App. A39–40 ("[U]sers,

particularly Young Users, [are] constantly experiencing negative experiences including bullying, exposure to self-harm, unwanted sexual advances, negative social comparisons, and a myriad of other harmful content."); App. A56–57 ("The results of Project Daisy showed the benefit of removing Like counts, but [the results were] ignored by Meta and not released to the public."); *see also* App. A142 (explaining that the State's omission-based deception theories "seek[] to hold Meta liable for concealing information in its possession about harmful third-party content on its [p]latforms"). Both theories directly implicate Meta's role as publisher of third-party content.

Courts have repeatedly held that Section 230 bars claims based on a failure to warn about third-party content or alleged harms emanating from that content. For example, the Ninth Circuit recently affirmed the dismissal of a failure-to-warn claim on Section 230 grounds where the plaintiffs alleged that the online service should have warned them about harmful content. *Est. of Bride by & through Bride v. Yolo Techs., Inc.*, 112 F.4th 1168, 1180 (9th Cir. 2024). The court explained:

> [T]he failure to warn claim faults [defendant] for not mitigating, in some way, the harmful effects of the harassing and bullying content. This is

> essentially faulting [defendant] for not moderating content in some way, whether through deletion, change, or suppression.… Thus, § 230 immunizes [defendant] from liability on these claims.

Id. at 1180, 1182. *See also Grindr Inc.*, 128 F.4th at 1154 (citing *Bride* and holding that Section 230 barred claim that Grindr had "a duty to warn users of 'a general possibility of harm' resulting from the App")).

Courts have also held that Section 230 necessarily bars failure-to-warn claims when "the harm animating [p]laintiffs' claims is directly related to the posting of third-party content." *L.W.*, 675 F. Supp. 3d at 1097 (internal quotation marks omitted) (citation omitted); *see, e.g.*, *Herrick v. Grindr LLC*, 765 F. App'x 586, 591 (2d Cir. 2019) (failure-to-warn claim was "inextricably linked to [defendant]'s alleged failure to edit, monitor, or remove" another user's content and barred by Section 230); *Lama v. Meta Platforms, Inc.*, 732 F. Supp. 3d 214, 222 (N.D.N.Y. 2024) (failure-to-warn claim dismissed because it was "inherently based on third-party content"). As in those cases, the State's theories here depend on Meta's "decision to publish" the allegedly harmful content and are barred by Section 230. *See Bride*, 112 F.4th at 1180–81.

The State's choice of label for its "failure-to-warn" or "omissions" theories, *see* App. A144 (arguing that the State's allegations of "deceptive omissions … do[] not seek to hold Meta liable for its 'failure to warn'"), is of no import to Section 230, *see Barnes*, 570 F.3d at 1101–02 ("[W]hat matters is not the name of the cause of action …."). The key inquiry in determining whether this statutory immunity from suit applies is "whether the duty that the plaintiff alleges the defendant violated derives from the defendant's status or conduct as a 'publisher or speaker.'" *Id.* at 1102. In this case, the State's omissions-based theories fault Meta "for not mitigating … the harmful effects of the harassing and bullying content" and other user interactions on its platforms. *Bride*, 112 F.4th at 1180. These theories, which depend on Meta's status or conduct as a publisher of other users' content, are likewise barred.

3. Section 230 Bars the State's Misrepresentation Theories.

The State's two misrepresentation theories also run afoul of Section 230 because they seek to hold Meta liable for moderating and publishing third-party content.

Safety and Content Moderation. The State alleges that Meta misrepresents the safety of its services to its users. App. A55–56. But misrepresentation claims based on a service's generalizations regarding safety are barred by Section 230. That is because "general statement[s] that [an] [a]pp is 'designed to create a safe and secure environment for its users,' is not a specific promise, but a description of its moderation policy." *Doe*, 128 F.4th at 1154. In other words, the State's misrepresentation theory challenges how Meta chooses to moderate content, *see, e.g.*, App. A42 (alleging that Meta misrepresents its moderation of harmful content and retains features that allow such content), and content moderation is a "traditional editorial function," *Medytox Sols.*, 152 So. 3d at 730. Meta's role as a publisher is therefore implicated, and Section 230 immunity applies.

Age-Gating. The State also seeks to hold Meta liable for allegedly "fail[ing] to adopt effective age-gating procedures to prevent access by underage users" to the content on its platforms. App. A47, 54. The State's age-gating theory is irreconcilable with Section 230. Imposing liability on Meta for purportedly ineffective age verification requirements implicates "Meta's role as a publisher" of "determining

who can and cannot speak on its platform." *Doe (K.B.) v. Backpage.com, LLC*, 768 F. Supp. 3d 1057, 1065 (N.D. Cal. 2025). Indeed, the obligation the State seeks to impose would both "limit[] who will create an … account" on Meta's platforms as well as the "content likely to be posted from those accounts." *Id.*; *see also Doe v. MySpace, Inc.*, 528 F.3d 413, 422 (5th Cir. 2008) (concluding that the plaintiffs' age-verification claim to keep young users off the defendant platform was barred by Section 230 because the claim implicated the "publication of third-party content"). The State's age-gating theory of liability is therefore precluded by Section 230.[2] *See Doe (K.B.)*, 768 F. Supp. 3d at 1065.

B. The First Amendment Bars the State's Claim.

Certiorari relief is separately warranted because the Order departs from binding precedent that safeguards First Amendment protections. The State's unfairness theory challenges the tools Meta

[2] Separately, the circuit court should have dismissed this claim because the State failed to respond to Meta's arguments for dismissal. *See* App. A178 n.4 (explaining that the State forfeited its age-gating theory of liability because the State "entirely fail[ed] to address Meta's argument that Section 230 bars age-gating claims where those claims essentially 'allege[] failure to include adequate age and identity verification measures'" (quoting *Doe (K.B.)*, 768 F. Supp. 3d at 1065)).

uses to publish third-party content on its platforms and so violates Meta's right to exercise editorial discretion over that content. The State's omissions theories seek to compel Meta to speak the State's expressive message and so infringes on Meta's First Amendment right *not* to speak. And the State's misrepresentations theories would impose liability on Meta for employee speech, including statements of opinion and testimony before the U.S. Congress, that receive First Amendment protection.

1. The First Amendment Bars the State's Unfairness Theory.

The First Amendment bars the State's unfairness theory because it challenges the tools Meta uses to publish user speech on its services. As the U.S. Supreme Court emphasized just last year, these tools constitute expressive activity that the First Amendment protects. *See Moody v. NetChoice, LLC*, 603 U.S. 707, 744 (2024). In failing to recognize this, the Order departs from longstanding legal principles and precedent.

The First Amendment protects Meta's editorial decisions regarding whether and how to publish, display, and disseminate user-generated content on its services. This right of "editorial control

and judgment" finds its roots in traditional publishing as far back as the Founding. *Mia. Herald Pub'g Co. v. Tornillo*, 418 U.S. 241, 258 (1974); *see also Columbia Broad. Sys., Inc. v. Democratic Nat. Comm.*, 412 U.S. 94, 151–53 (1973) (Douglas, J., concurring) (noting that the Framers of the First Amendment centered publishers' freedom of choice, and that to Benjamin Franklin, the "'newspaper was not a stagecoach, with seats for everyone'" (citation omitted)). The Supreme Court later extended the right to modern, Internet-based services. *See Reno v. ACLU*, 521 U.S. 844, 870 (1997). And in *Moody*, the U.S. Supreme Court affirmed the right's application to the editorial decisions of social media services. There, the state laws under review sought to "restrict the ability of social-media platforms to control whether and how third-party posts are presented to other users." *Moody*, 603 U.S. at 717. The U.S. Supreme Court affirmed that the First Amendment shielded such activity, holding that decisions made by Meta and other companies in "presenting a curated and 'edited compilation of [third party] speech' is itself protected speech." *Id.* at 744.

Moody explained that "an entity exercising editorial discretion in the selection and presentation of content is engaged in speech

activity," *id.* at 731 (citation modified), and that Meta and other companies "engage[] in expression" when they "make choices about what third-party speech to display and how to display it"—such as when they "include and exclude, organize and prioritize" user-generated content to present users a "curated" feed of content to their users. *Id.* at 716–17. This "prioritization of content, achieved through the use of algorithms," "results in a distinctive expressive product." *Id.* at 731, 734. "When the government interferes with" that product, it "confronts the First Amendment." *Id.* at 731–32.

The State's unfairness theory seeks to impose liability on Meta for this very activity. *Moody* makes clear that the First Amendment bars the State's attempt to hold Meta liable for editorial judgments, even if they result in young users' exposure to allegedly harmful content. *See* App. A10. It is irrelevant that the State couches its unfairness theory as a challenge to Meta's content-delivery "features," rather than the editorial decisions those features represent. *See* App. A4, 13, 17, 19, 20, 24–31, 54–55 (algorithms, "age-gating," "filters," "likes," "ephemeral content," "multiple accounts," "notifications," "time management tools," "infinite scroll, autoplay, and reels"). The State cannot dodge the restrictions

imposed by the First Amendment through creative pleading. Like the state laws at issue in *Moody*, the State seeks to unconstitutionally alter or eliminate Meta's use of features that order, organize, and present third-party content. *See supra* pp. 17–25; *see also, e.g.*, *NetChoice, LLC v. Griffin*, No. 5:23-CV-5105, 2025 WL 978607, at *8 (W.D. Ark. Mar. 31, 2025) (permanently enjoining state's attempt to establish age-verification requirements because they "impose[] significant burdens on adult access to constitutionally protected speech"), *appeal docketed* (8th Cir., No. 25-1889); *NetChoice, LLC v. Yost*, No. 2:24-cv-00047, 2025 WL 1137485, at *15 (S.D. Ohio April 16, 2025) (similar), *appeal docketed* (6th Cir., No. 25-3371).

Just as Meta could not be held liable for alleged harm caused by a direct exercise of editorial discretion, Meta cannot be held liable for alleged harm caused by publication features that simply operationalize its editorial choices. U.S. Supreme Court precedent precludes "a government official [from doing] indirectly what she is barred from doing directly." *Nat'l Rifle Ass'n of Am. v. Vullo*, 602 U.S. 175, 190 (2024) (citing *Bantam Books, Inc. v. Sullivan*, 372 U.S. 58, 67–69 (1963)).

Moreover, the State's claim boils down to an attack on the presence of content that it finds "harmful" or "addictive" on Meta's services. *See, e.g.*, App. A13, 30, 39–40, 46; *see also supra* pp. 17–25 (similar as to Section 230). But, under the First Amendment, the State has "no power to restrict expression because of its message, its ideas, its subject matter, or its content." *Brown v. Ent. Merchs. Ass'n*, 564 U.S. 786, 790–91 (2011) (citation modified). And the First Amendment's protections for speech apply broadly, without regard to the perceived value of the message being conveyed. *See Hurley v. Irish-Am. Gay, Lesbian & Bisexual Grp. of Bos.*, 515 U.S. 557, 574 (1995) (First Amendment protects content that is "misguided, or even hurtful"); *Snyder v. Phelps*, 562 U.S. 443, 456 (2011) (same for content likely to cause "anguish" and "incalculable grief"). The State therefore cannot force Meta to remove, deprioritize, or otherwise regulate user-generated content on its services simply because the State views that content as objectionable or inappropriate. *See, e.g.*, *Cox Broad. Corp. v. Cohn*, 420 U.S. 469, 496 (1975) (First Amendment shields publisher from "liability for truthfully publishing information").

2. The First Amendment Bars the State's Omissions Theories.

The Complaint presses omissions theories that would compel Meta to speak the State's preferred message regarding alleged harm caused by content on Meta's services. This infringes on Meta's right *not* to speak and so is barred by the First Amendment. *See Wooley v. Maynard*, 430 U.S. 705, 714 (1977) ("[T]he right of freedom of thought protected by the First Amendment against state action includes both the right to speak freely and the right to refrain from speaking at all.").

The State seeks to permanently enjoin Meta from failing to publicly disclose—and therefore to require Meta to disclose—the presence and prevalence of allegedly harmful third-party content on its services, as well as "the serious risks its features pose to [y]oung [u]sers' mental health." App. A57 (Prayer¶ B); A35, 50, 56; *see also* App. A36–42. "Mandating speech that a speaker would not otherwise make necessarily alters the content of the speech," including when a State seeks warnings or "disclos[ures]" from the defendant about the content of its expressive activity. *Riley v. Nat'l Fed'n of the Blind of N.C., Inc.*, 487 U.S. 781, 795 (1988). It is well-established that "the

forced display of a government message" is a "classic example of compelled government speech" that violates the First Amendment. *McClendon v. Long*, 22 F.4th 1330, 1336–37 (11th Cir. 2022). And, "[w]hen the government 'compel[s] speakers to utter or distribute speech bearing a particular message,' … such a policy imposes a content-based burden on speech and is subject to strict-scrutiny review." *Id.* at 1337–39 (quoting *Turner Broad. Sys., Inc. v. FCC*, 512 U.S. 622, 641–42 (1994)).

A straightforward application of these principles requires dismissal of the State's omissions theories, as illustrated by the Ninth Circuit's recent decision in *NetChoice, LLC v. Bonta*, 113 F.4th 1101 (9th Cir. 2024). That court held that the First Amendment likely barred a California statute requiring covered businesses to "opine on and mitigate" any risk "that children may be exposed to harmful or potentially harmful materials online," because the law compelled speech and effectively "deputize[d] covered businesses into serving as censors for the State." *Id.* at 1108, 1118. This First Amendment problem was exacerbated because, as here, the state sought to require "businesses [to] measure and disclose … risk that children will be exposed to disfavored speech online." *Id.* at 1121.

Here, the State seeks to accomplish through civil suit what California could not accomplish through law: compelling a social media service to speak through labels and disclosures on allegedly harmful third-party content and risks to minors. Just as a state cannot compel a newspaper to devote space to including political opinions that it does not wish to include, *see Tornillo*, 418 U.S. at 256–57, or a parade organizer to include messages it does not wish to include, *see Hurley*, 515 U.S. at 575, so too a state cannot through tort law compel a social media service to offer opinions about the potential harms of third-party speech, or otherwise dictate what content a service may or may not include, *see Moody*, 603 U.S. at 728; *Volokh v. James*, 148 F.4th 71, 89–90 (2d Cir. 2025) (recognizing that state law is subject to First Amendment strict scrutiny to the extent it requires social media defendants to make "disclosures that reference 'hateful conduct'" or otherwise engage in "controversial speech").

The Ninth Circuit is not alone in reaching this conclusion. Courts across the country have dismissed failure-to-warn claims or disclosure requirements under the First Amendment. *See NetChoice v. Weiser*, No. 25-CV-2538-WJM-KAS, __ F. Supp. 3d __, 2025 WL

3101019, at *12–13 (D. Colo. Nov. 6, 2025) (holding that Colorado statute likely violated First Amendment by compelling covered businesses to deliver the state's preferred "expressive message about the risks to minors of social media use"); *Watters v. TSR, Inc.*, 715 F. Supp. 819, 822 & n.1 (W.D. Ky. 1989) (concluding that because game publisher was protected from liability by the First Amendment, "it likewise cannot constitutionally be required to warn its readers of possible consequences of reading or playing the game materials"), *aff'd*, 904 F.2d 378 (6th Cir. 1990); *DeFilippo v. Nat'l Broad. Co.*, 446 A.2d 1036, 1038–42 (R.I. 1982) (barring failure-to-warn claim against television show that allegedly inadequately warned viewers); *Olivia N. v. Nat'l Broad. Co.*, 126 Cal. App. 3d 488, 492 (1981) (barring claim that television broadcaster failed to properly warn audience of the risk that violent film was likely to inspire imitation by users).

3. The First Amendment Bars the State's Misrepresentation Theories.

The State's misrepresentations theories run headlong into the First Amendment's protections for statements of opinion and congressional testimony. The Circuit Court should have dismissed these as well.

The State asserts that Meta made several affirmative misrepresentations regarding whether its services are safe and suitable for young users. For example, the State contends that certain employees or executives falsely described Meta's services as "safe," "suitable," and "age-appropriate" for teens; that promoting user well-being "is a top priority"; that Meta researchers ask "hard" questions intended to "improve" user experiences; and that Meta is "effective" in keeping underage users from making accounts on the services. *See* App. A43–53, A55–56.

As courts have recognized, however, the First Amendment protects each of these statements as opinions. Meta's generalized assertions about the safety of its services are "inherently subjective." *See Partington v. Bugliosi*, 56 F.3d 1147, 1158 (9th Cir. 1995). The veracity of such statements—what courts often refer to as "puffery"—cannot be proven: "There is no objective standard by which one can … determine conclusively the[ir] truth or falsity." *Id.*; *see also MDVIP, Inc. v. Beber*, 222 So. 3d 555, 561 (Fla. 4th DCA 2017) ("[M]atter[s] of opinion rather than fact … constitute[] non-actionable puffery"); *Fineman v. Ferragamo USA Inc.,* 672 F. Supp. 3d 1302, 1311 (S.D. Fla. 2023) ("[A] statement goes beyond mere puffery when it is

empirically verifiable and 'can be affirmatively disproven' as opposed to an 'opinion'") (quoting *Next Century Commc'ns Corp. v. Ellis*, 318 F. 3d 1023, 1028 (11th Cir. 2003)). Even the State has not identified any way to directly refute or otherwise test the veracity of the statements it challenges.

Because the First Amendment protects these statements of opinion, the State's claim should have been dismissed. *See, e.g.*, *Bongino v. Daily Beast Co., LLC*, 477 F. Supp. 3d 1310, 1320 (S.D. Fla. 2020) (dismissing claim based on comments that were "pure opinion and thus protected by the First Amendment") (citation modified)); *In re Lyft Inc. Sec. Litig.*, 484 F. Supp. 3d 758, 770 (N.D. Cal. 2020) (dismissing claim based on "generalized assertions about Lyft's commitment to safety, its safety measures, and the role safety plays in the rideshare market," which were "not actionable").

Separately, many of the alleged misrepresentations were statements made by Meta employees and executives in testimony before the U.S. Congress. *See* App. A45, 46, 47, 48–49, 52–53, 55–56 (discussing, referencing, and citing Meta executive's congressional testimony); App. A17–18, 45, 47, 49, 56, 57 (similar). Such statements independently receive First Amendment protection under

the *Noerr-Pennington* doctrine. As this Court's sister district has recognized, the *Noerr-Pennington* doctrine "grants immunity under the First Amendment to those petitioning government." *Sewell*, 245 So. 3d at 827.[3] Meta's congressional testimony is quintessential petitioning activity, as its employees and executives engaged with and responded to questioning by members of Congress charged with establishing policies that could affect the company. *See E.R.R. Presidents Conf. v. Noerr Motor Freight, Inc.*, 365 U.S. 127, 145 (1961); *United Mine Workers of Am. v. Pennington*, 381 U.S. 657, 670 (1965). The First Amendment protects these statements "to avoid chilling the exercise of the First Amendment right to petition the government." *Octane Fitness, LLC*, 572 U.S. at 556. Accordingly, the State cannot impose liability for any statements—whether fact or opinion—that Meta's employees or executives made while petitioning Congress.

CONCLUSION

For the foregoing reasons, this Court should grant Meta's petition for certiorari and quash the Order of the Circuit Court.

[3] This immunity applies even if a petitioner's "motives are self-seeking or even unethical." *Id.* at 827.

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Respectfully submitted,

By: /s/ *Laura K. Whitmore*

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**Pro Hac Vice Forthcoming*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on November 26, 2025, I electronically filed the foregoing with the Clerk of Court by using the Florida Courts E-Filing Portal. I HEREBY FURTHER CERTIFY that a true and correct copy of the foregoing was served by email on Respondents' counsel and the Honorable Alicia Polk on November 26, 2025.

/s/ *Laura K. Whitmore*

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CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this petition contains 8,158 words, according to the word count of the word-processing system used to prepare it, in compliance with Florida Rule of Appellate Procedure 9.100(g). The petition was prepared in Bookman Old Style, 14-point font, in compliance with Florida Rule of Appellate Procedure 9.045(b).

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